

§ 60. No special motion or application shall be heard or granted in vacation, unless on proof that the opposite party, his or her agent or attorney, if residing within the limits of the state, has had reasonable notice, except applications for writs of injunction and *ne exeat*, which may be made at any time, and without notice, as heretofore.

Ib. Sec. 12.
No special motion in vacation, without notice, except, &c.

§ 61. The registers in chancery shall have power to order bills to be taken as confessed, for the want of answers, in vacation, and to grant orders, in vacation, requiring publication to be made against non-resident defendants.

Ib. Sec. 13.
Register may enter decrees *pro confesso*, in vacation, and grant orders of publication.

§ 62. Guardians *ad litem* to minor defendants, residing within the state, may be appointed, if the minor be fourteen years of age, with the written consent of the minor and guardian, certified by a justice of the peace; if minor defendants be under fourteen years of age, residing within the state, then the court may appoint any suitable person who will consent to act as guardian *ad litem*; and if minors reside out of the state, of whatever age, publication shall be made as in other cases, and on proof of publication, the court may appoint a suitable person guardian *ad litem*.

Ib. Sec. 14.
Guardians *ad litem* to minors, how appointed.

§ 63. In cases in equity, where property in litigation is liable to be wasted, carried out of the jurisdiction of the court, or otherwise disposed of, it shall be lawful for the chancellor or any circuit judge, in vacation or in term time, to order process to issue, requiring the sheriff to take possession of said property, until the defendant, his agent or attorney in fact, give bond, with good security, to have said property forthcoming, and to abide and perform the further order and decree of the court, and if the defendant do not so give bond with security, within ten days, then it shall be lawful for the sheriff to deliver possession of the property to the complainant on his giving the like bond: *Provided*, That before any such process shall be ordered, the complainant, his agent or attorney in fact, shall make oath that the defendant is wasting or disposing of the property, or carrying it out of the state, or threatens to do so; *And provided, also*, That the complainant, his agent or attorney in fact, give bond, with good security, to indemnify the defendant for all costs and damages he may wrongfully sustain; *And provided*, The case presented by the bill, in other respects, will warrant the interference of a court of equity.

Ib. Sec. 15.
Chancellor, or any circuit judge, may require sheriff to take possession of property liable to be wasted or carried out of the state.

Provisos.

§ 64. When an appeal or writ of error is taken to the supreme court, from the decree of a chancellor, all further proceedings on said decree shall be thereby suspended: *Provided*, The appellant or plaintiff in error, give bond with security, as in cases of error to the courts of law.

Ib. Sec. 16.
Proceedings suspended by appeal, &c., from decree. Proviso.

§ 65. Unless exceptions have been filed to the report of the master, the same shall be confirmed by the court after two days' notice.

Ib. Sec. 17.
Master's report when confirmed.

§ 66. Where it shall appear to the chancellor, either by inspection or other proof, that a party, either complainant or defendant, is an idiot, or lunatic, or from imbecility of mind is incapable of managing his affairs, it shall be lawful for the chancellor to appoint a guardian *ad litem*, though the party may not have been found an idiot or lunatic by a regular commission or inquisition of lunacy.

Ib. Sec. 18.
Chancellor may appoint guardian *ad litem*, for idiot, &c.

§ 67. No *feme covert* shall file a bill for a divorce or other matter, otherwise than by her next friend, except in cases where her husband has joined with her in the bill.

Ib. Sec. 19.
Feme covert to file bill, how.

§ 68. The chancellors shall not be required to alternate, but may hold courts for each other, at their option, and so much of the act

Ib. Sec. 20.
Chancellors need not al-